

BEFORE THE COLORADO BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

CASE NO.: 2006-000997

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF S.
SCOTT TATE, LICENSE NO. LPC 1113,

Respondent.

IT IS HEREBY STIPULATED by and between the Colorado Board of Licensed
Professional Counselor Examiners ("Board") and S. Scott Tate ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Number 2006-000997. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent entered into a Stipulation and Final Agency Order effective on August 8, 2007 ("August 2007 Order"), in which Respondent admitted to the following violations:
 - (1) Respondent failed to terminate a relationship with client A, whose identity is known to Respondent, when it was reasonably clear that the client was not benefiting from the relationship and was not likely to gain such benefit in the future.
 - (2) Respondent failed to refer client A, whose identity is known to Respondent, to an appropriate practitioner when the problem of the client was beyond his training, experience, or competence.

- (3) In regard to client A, whose identity is known to Respondent, Respondent failed to act in a manner that meets the generally accepted standards of the professional discipline of psychotherapy under which Respondent practices.
- b. Respondent failed to comply with the August 2007 Order by not completing any of the required 60 hours (20 hours each year for three (3) years) of continuing education.
- c. On or about December 30, 2010, Respondent submitted a plan to complete the continuing education requirement in the August 2007 Order; however the Board determined it was deficient and it was rejected.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §12-43-222(1)(b), (g), (k) and (l), C.R.S.

PROBATION

6. Respondent's license to practice psychotherapy as a licensed professional counselor in the State of Colorado was placed on probation pursuant to the August 2007 Order. All of the terms and restrictions of Respondent's current probation, including any requirements for practice monitoring and therapy (the latter if required under the August 2007 Order), shall continue, and Respondent shall continue to be bound by the terms and restrictions set forth in the August 2007 Order except as modified below.

7. The period of probation is tolled during any time that Respondent is not practicing psychotherapy in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing psychotherapy in the State of Colorado in accordance with this Order and the August 2007 Order.

8. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing psychotherapy as a licensed professional counselor in the State of Colorado, is being monitored by a practice monitor and undergoing therapy (if any), and is in full compliance with all terms of this Order and the August 2007 Order.

9. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order and the August 2007 Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

CONTINUING EDUCATION

10. During the period of probation, Respondent must successfully complete one hundred twenty (120) hours of Board-approved professional continuing education courses in the areas of trauma disorders, ethics, standards of care, personality disorders, psychotherapy process, and termination process according to the following schedule:

- Twenty (20) hours by August 1, 2011;
- Twenty (20) hours by November 1, 2011;
- Twenty (20) hours by February 1, 2012;
- Twenty (20) hours by May 1, 2012; and
- Twenty (20) hours by August 1, 2012.

Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of each group of hours according to the above schedule, Respondent shall submit proof of completion (i.e., certificates of completion) within fifteen (15) days of each deadline date listed.

AUTOMATIC REVOCATION

11. If, at any time during the probation period, the Board has reasonable grounds to believe that Respondent violated any term of this Order or committed any act or omission which constitutes grounds for disciplinary action under section 12-43-222, C.R.S., the Board may revoke Respondent's license to practice as a licensed professional counselor. Such revocation shall be effective three (3) days after the date of mailing the notice of revocation to Respondent by first-class mail to Respondent's address of record with the Board. Such notice of revocation shall set forth the grounds for the Board's action. Respondent has the responsibility to notify the Board of any change of address.

a. Within ten (10) days of the effective date of the revocation, Respondent may request a formal hearing, as provided by section 24-4-105, C.R.S. The sole issue at such hearing shall be limited to the issues identified in the notice of the revocation. The parties agree that this procedure shall satisfy all of Respondent's entitlements to due process of law.

b. If, at a hearing on issues in the notice of revocation, the Board fails to meet its burden of proof to establish facts as described in this paragraph, then Respondent's license shall not be revoked and this Order shall remain operative and in full force and effect.

TERMS AND CONDITIONS

12. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

13. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

14. All expenses incurred or associated with the practice monitoring, therapy if any, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

15. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his practice monitor or therapist (if any) to provide records and information obtained in the normal course of practice monitoring or treatment to the Board if the practice monitor or therapist (if any) determines that Respondent is not practicing psychotherapy in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent explicitly waives his right to maintain confidentiality of records or information provided to the practice monitor or therapist (if any) in the normal course of practice monitoring or treatment if the practice monitor or therapist (if any) determines that he is not practicing psychotherapy in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care.

16. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

17. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

18. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

19. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

20. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

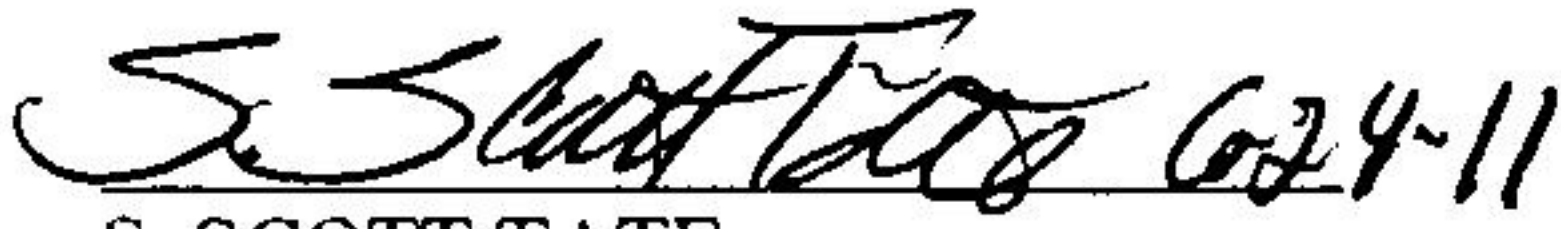
21. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

22. This Order shall become effective when accepted and signed on behalf of the Board.

23. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

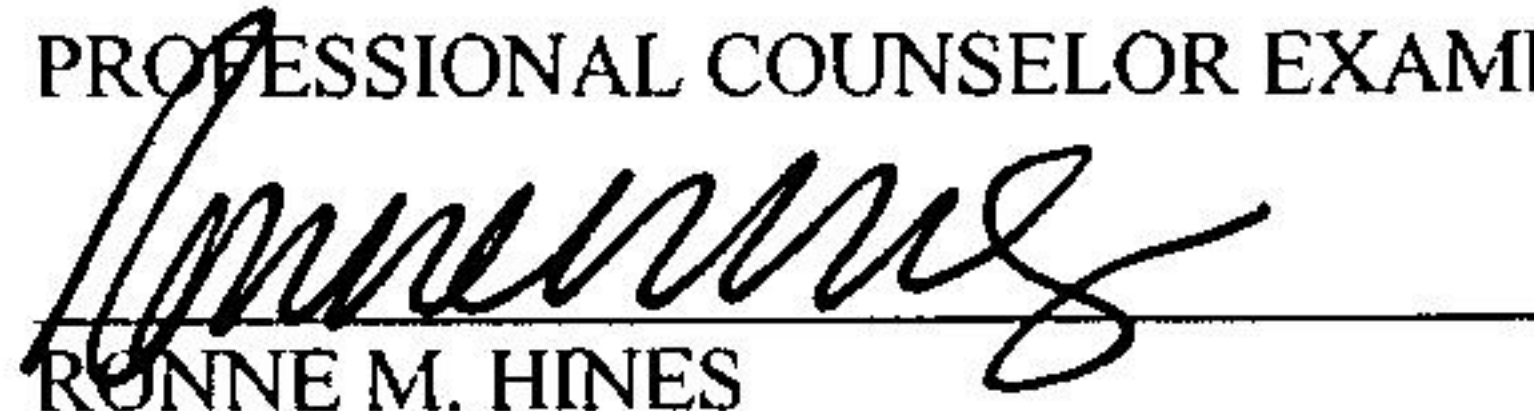
RESPONDENT

 6-24-11

S. SCOTT TATE
License No. LPC 1113

AGREED TO AND ORDERED BY:

COLORADO BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



RONNE M. HINES
Program Director

Effective Date: This 5th day of

July, 2011.